

**BEFORE THE
FEDERAL MARITIME COMMISSION**

GLOBAL KINGS LOGISTICS/ KAMORDEEN A. GANIU, <i>Complainant,</i>	)	
	)	
	)	
v.	)	
	)	
MEDITERRANEAN SHIPPING COMPANY (USA) INC.	)	
	)	
	)	DOCKET NO. 26-09
<i>Respondent.</i>	)	
	)	

**RESPONDENT’S REPLY TO COMPLAINANT’S MOTION FOR LEAVE TO
AMEND COMPLAINT**

Respondent Mediterranean Shipping Company (USA) Inc. (“MSC USA” or “Respondent”) submits this reply to Complainant’s Motion for Leave to Amend its Complaint (“Motion”).

I. Complainant’s Motion Should be Denied

Complainant’s Motion should be denied because MSC USA’s Motion to Dismiss is still pending before the Presiding Officer.

MSC USA moved to dismiss a number of claims contained in the original complaint on a variety of grounds. That motion to dismiss remains pending before the Presiding Officer. Complainant, apparently recognizing the fatal deficiencies in the original complaint, approached Respondent and requested that Respondent consent to this Motion, which Complainant characterized as a motion for leave to file an amended complaint adding MSC Mediterranean Shipping Company S.A. as a respondent. Respondent declined to consent to the Motion because

Complainant's proposed amended complaint goes far beyond adding an additional party to add several additional causes of action to the complaint. Complainant seeks leave to make these changes despite the fact that the Presiding Officer has yet to address the questions of law underlying Respondent's motion to dismiss. In an absence of a ruling from the Presiding Officer on the issues of whether the Federal Maritime Commission has jurisdiction over the original complaint and whether the Complainant has properly plead certain causes of action, ruling on this Motion would be premature.

If Complainant is granted leave to file the amended complaint prior to a ruling on Respondent's motion to dismiss, there is a risk that the amended complaint may seek to remedy alleged defects that are determined not to exist. This could result in further motions practice which might be avoided by Complainant awaiting a ruling on Respondent's motion to dismiss before seeking leave to file an amended complaint.

Therefore, Respondent requests that the Presiding Officer deny the Motion.

II. Conclusion

For the foregoing reasons, the Motion should be denied.

Respectfully submitted,



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Dated: July 27, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 27th day of July 2026, the foregoing Respondent's Reply to Complainant's Motion for Leave to Amend was served via electronic mail on:

Kamordeen A. Ganiu
info@gklshipping.com



Rachel Schwartz